

observations of the judicious Blackstone* in reference to the latter, are well worthy of recital. "To bereave
 " a man of life (says he) or by violence to confiscate
 " his estate, without accusation or trial, would be so
 " gross and notorious an act of despotism, as must at
 " once convey the alarm of tyranny throughout the
 " whole nation; but confinement of the person by
 " secretly hurrying him to goal, where his sufferings
 " are unknown or forgotten, is a less public, a less
 " striking, and therefore a *more dangerous engine* of
 " arbitrary government." And as a remedy for this
 fatal evil, he is every where peculiarly emphatical in
 his encomiums on the *habeas corpus* act, which in
 one place he calls "the BULWARK of the British
 " constitution."†

Nothing need be said to illustrate the importance of the prohibition of titles of nobility. This may truly be denominated the corner stone of republican government; for so long as they are excluded, there can never be serious danger that the government will be any other than that of the people.

To the second, that is, to the pretended establishment of the common and statute law by the constitution, I answer, that they are expressly made subject
 " to such alterations and provisions as the legislature
 " shall from time to time make concerning the
 " same." They are therefore at any moment liable to repeal by the ordinary legislative power, and of course have no constitutional sanction. The only use of the declaration was to recognize the ancient law, and to remove doubts which might have been occasioned by the revolution. This consequently can be considered as no part of a declaration of rights, which under our constitutions must be intended as limitations of the power of the government itself.

It has been several times truly remarked, that bills of rights are in their origin, stipulations between
 kings

* Vide Blackstone's Commentaries, vol. 1, page 136.

† Idem, vol. 4, page 438.